

24NNCV04918 24NNCV04918

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Case Number: 24NNCV04918 Hearing Date: July 17, 2026 Dept: A

TENTATIVE RULING

JULY 17, 2026

MOTION FOR SUMMARY JUDGMENT

Los

Angeles Superior Court Case # 24NNCV04918

MP: Defendant Merceditas Lampert

RP: Plaintiff Pauline Esparza

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and the tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS AND RELEVANT

BACKGROUND:

Pauline

Esparza and Rebecca Soza ("Plaintiffs") allege that on October 20, 2022, Elizabeth Chen and Mercedes Lampert ("Defendants") negligently operated their vehicles, causing a vehicular collision.

Plaintiffs allege that they were traveling lawfully on the I-210 near Baldwin Avenue when Defendants each struck Plaintiffs' vehicle.

The

complaint, filed October 8, 2024, alleges: (1) Motor Vehicle Negligence; and (2) General Negligence.

On June

10, 2025, Plaintiffs dismissed without prejudice the Complaint only as to Plaintiff Rebecca Soza. On June 24, 2026,

Dismissal in Favor of Mercedes Lampert Against Rebecca Soza was entered. The Dismissal states that Plaintiff Rebecca Soza dismissed her action against all Defendants, but Defendant Mercedes Lampert did not reach a settlement with Soza before the action was voluntarily dismissed, Soza shall take nothing against Lampert, Lampert did not agree to waive cost as to Soza prior to dismissal, Lampert is the prevailing party in the action filed by Soza, and Lampert is entitled to collect \$628.48 in costs.

MOTION ON CALENDAR:

On April 1, 2026, Lampert filed a

Motion for Summary Judgment on Plaintiff Pauline Esparza's ("Plaintiff")

Complaint. On June 26, 2026, Plaintiff filed

an opposition. On July 2, 2026, Lampert

filed a reply.

LEGAL

STANDARD:

The function of a motion for

summary judgment or adjudication is to allow a determination as to whether an

opposing party cannot show evidentiary support for a pleading or claim and to

enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001)

25 Cal.4th 826, 843.) C.C.P. § 437c(c) "requires the trial judge to grant

summary judgment if all the evidence submitted, and 'all inferences reasonably

deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

EVIDENTIARY OBJECTIONS:

With the reply, Lampert objected to Exhibit G of Plaintiff's counsel Z. Dean Hakkak's declaration, which includes "photographs depicting injuries and medical conditions Plaintiff Pauline Esparza contends resulted from the subject collision." (Hakkak Decl., ¶14, Ex. G.) Objection No. 1 is sustained on the basis that the photographs are irrelevant and lack foundation, authentication, and personal knowledge.

ANALYSIS:

Lampert moves for summary judgment against Plaintiff on the grounds that: (1)-(2) there are no triable issues of fact as to Plaintiff's Motor Vehicle Negligence claim and General Negligence claim as Lampert was not negligent at the time of the subject incident; and (3) Chen admitted 100% responsibility for causing this three-vehicle accident. Lampert claims the undisputed facts show that she came to a complete stop behind Plaintiff and was only pushed into Plaintiff's vehicle after being impacted by Chen's vehicle, and that Lampert acted as a reasonably careful person and did not

breach her duty of care. (Notice of Mot.
at p.2.)

A.

Relevant Law Regarding Motor Vehicle Negligence

The
elements of negligence are “duty, breach of duty, proximate cause, and
damages.” (Carlsen v. Koivumaki (2014) 227 Cal.App.4th 879, 892.)

“The
operator of a vehicle must keep a proper lookout for other vehicles or persons
on the highway and must keep his car under such control as will enable him to
avoid a collision; failure to keep such a lookout constitutes negligence.” (Downing v. Barrett Mobile Home Transport,
Inc. (1974) 38 Cal.App.3d 519, 524.)

“The
driver of a motor vehicle shall not follow another vehicle more closely than is
reasonable and prudent, having due regard for the speed of such vehicle and the
traffic upon, and the condition of, the roadway.” (Veh. Code, § 21703.)

“No
person shall drive a vehicle upon a highway at a speed greater than is
reasonable or prudent having due regard for weather, visibility, the traffic
on, and the surface and width of, the highway, and in no event at a speed which
endangers the safety of persons or property.”
(Veh. Code, § 22350.)

B.

Material Facts

Lampert
provides the following material facts.
On October 9, 2024, Plaintiffs Esparaza and Soza filed their Complaint against
Defendants Chen and Lampert, alleging Defendants were negligent in operating
their respective motor vehicles. (Def.'s
Fact 1.) On April 18, 2025, Lampert
answered, which included affirmative defenses that the Complaint failed to
state a cause of action and that the accident was the fault of others. (Id. at 2.) On June 10, 2025, Soza dismissed her
Complaint, leaving Esparaza as the sole plaintiff. (Id. at 3.)

This

litigation arises out of a three-vehicle collision which occurred on October 20, 2022 at approximately 12:20 p.m. on the westbound 210 freeway, near the exit for Baldwin Avenue in Los Angeles, CA.

(Def.'s Fact 4.) All three

vehicles involved in the collision were in the #3 lane at all relevant times. (Id. at 5.) Plaintiff operated a 1999 Chevrolet S10; Lampert operated a white 1999 Toyota Avalon; and Chen operated a silver Toyota Camry. (Id. at 6-8.) Chen drove directly behind Lampert, and Lampert drove directly behind Plaintiff.

(Id. at 9.) Traffic on the

210 freeway was stop-and-go just before the accident. (Id. at 10.) When traffic came to a stop, Plaintiff brought her vehicle to a complete stop and Lampert too brought her vehicle to a complete stop behind Plaintiff. (Id. at

11.) As Plaintiff and Lampert were

completely stopped, Chen rear ended Lampert's vehicle. (Id. at 12.) The rear-end impact from Chen's vehicle caused Lampert's vehicle to be pushed into the rear of Plaintiff's vehicle. (Id. at 13.) Chen's vehicle struck Lampert's vehicle, before

Lampert's vehicle was pushed into Plaintiff's vehicle. (Id. at 14.) Plaintiff heard two impacts but only felt one impact to the rear of her vehicle; she heard the first impact and felt the second. (Id. at 15.)

Chen has

admitted 100% fault for causing the collision and admitted that Lampert was not negligent. (Def.'s Fact 16.) Plaintiff watched the entire series' events unfold from her rear-view

mirror. (Id. at 17.) Lampert claims that Plaintiff has no evidence to support her Negligence claim against Lampert. (Id. at 18.)

Plaintiff

does not dispute Facts 1-10, 14-15, and 17.

Facts 11-13 and 16 are partially disputed. Fact 18 is disputed in whole.

C.

Defendant Lampert's Initial Burden

Lampert

argues that the undisputed evidence establishes she did not breach a duty, such that she has negated an essential element of Negligence and is entitled to

summary judgment.

Lampert

provides Chen's discovery responses.

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In response to

Lampert's Requests for Admissions ("RFA"), Chen admitted that: (1) she was negligent at the time of the subject incident; (2) she was 100% at fault for causing the subject incident; (3)-(4) Plaintiff's vehicle and Lampert's vehicle were at a complete stop when the subject incident occurred; her vehicle struck Lampert's vehicle before Lampert's vehicle struck Plaintiff's vehicle; (6)-(7) Lampert's vehicle was pushed into Plaintiff's vehicle after being struck by Chen's vehicle; (8)-(9) Lampert was not negligent at the time of the subject incident and she has no evidence of Lampert's negligence; and (10)-(11) Lampert was not at fault for causing the subject incident and she has no evidence of Lampert's fault/causation. (Mot., Ex. D [Chen's RFA Responses].)

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In response to

Lampert's Form Interrogatory ("FROG") No. 20.8, Chen stated that just before the incident, she was traveling westbound on the 210 Freeway in the #3 lane in stop-and-go traffic up to a maximum of 25-30 mph; at the time of the incident, traffic suddenly stopped and she was unable to stop in time and rear-ended the vehicle in front of her; and after the incident, a CHP patrol vehicle instructed the parties to exit the highway and CHP took a report. (Mot., Ex. H [Chen's FROG Responses].)

Lampert

also provides Plaintiff Esparza's RFA and FROG responses and her deposition transcript.

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In her RFA

responses, Esparza admitted that: (4)-(5) she was in the #3 lane at a complete stop at the time of the subject incident; (6)-(7) she looked into her rear-view mirror right before impact and saw Lampert's vehicle had come to a complete stop behind her; (8)-(9) when she looked into her rear-view mirror just before impact, she saw Chen's vehicle strike Lampert's vehicle and watched Lampert's vehicle be pushed into Plaintiff's vehicle; and (10)-(11) she heard two impacts and only felt one. (Mot., Ex. E [Pl.'s

RFA Responses].)

Esparza was

unable to admit or deny whether: (15)-(16) Lampert was not negligent and if Plaintiff had evidence thereto; (17)-(18) Lampert was not at fault for causing the subject incident and if Plaintiff had evidence thereto; and (19) whether Chen was 100% at fault for causing the subject incident. (Id.)

In her FROG No.

17.1 response, she cited her RFA Nos. 15-23 responses as not being unqualified admissions, stating that to the best of her knowledge, she was at a complete stop due to traffic when suddenly she felt an impact from the rear of her vehicle and sustained injuries. (Mot., Ex. I.)

At her December

19, 2025 deposition, Plaintiff testified that the subject incident occurred on October 20, 2022 around noon on the 210 eastbound freeway. (Mot., Ex. F [Pl.'s Depo. at p.18]; Def.'s Fact 4.) She drove a 1999 Chevy S10 and in the #3 lane of travel. (Pl.'s Depo. at pp.20, 22; Def.'s Fact 5-6.) She testified there were three vehicles involved in the incident, including her car in the first position, a white sedan directly behind her, and a silver sedan behind the white car. (Pl.'s Depo. at pp.21, 23; Def.'s Fact 6-9.) She witnessed the entire series of events through her rear-view mirror. (Pl.'s Depo. at p.25; Def.'s Fact 17.) When asked to describe how the accident happened, she testified: "It was heavy traffic, stop and go. I was at a complete stop and the white car kind of stopped quickly and then the gray [silver] car hit that car and then I got hit by the white car." (Pl.'s Depo. at pp.23-24; Def.'s Fact 11-14.) She testified she had an indication the accident was going to occur because when she looked at her rearview mirror, she saw the gray/silver car coming fast and knew it was not going to stop in time. (Pl.'s Depo. at pp.24-25.) The silver vehicle then rear-ended the white vehicle, which impacted the rear of Plaintiff's vehicle. (Pl.'s Depo. at p.24; Def.'s Fact 12-14.)

In her

declaration, Lampert provides the same underlying facts regarding the date,

time, and location of the subject incident and the order of the three vehicles. (Mot., Ex. G [Lampert Decl., ¶¶2-3].) She states that traffic was stop-and-go and that when traffic stopped, Plaintiff brought her vehicle to a stop and Lampert stopped directly behind Plaintiff. (Lampert Decl., ¶4.) After coming to a stop, she looked in her rear-view mirror and saw a Toyota Camry approaching, then she was rear-ended by the Camry and her car was pushed into Plaintiff's vehicle. (Id., ¶5.) She states she felt two impacts: (1) the first from behind when she was hit by the Camry; and (2) the second when her car was pushed into Plaintiff's car ahead of her. (Id., ¶6.) She states she did not hit Plaintiff's car until after she was struck from behind by the Camry as the Camry's impact pushed her car into Plaintiff's car. (Id.)

Lampert also argues that Plaintiff is unable to admit or deny essential elements of her case in RFA Nos. 15-19 and FROG No. 17.1. (Mot. at pp.13-14.) She argues that Plaintiff's factually devoid answers show that she lacks evidence to support a claim against Lampert. However, the Court declines to construe Plaintiff's failure to admit or deny RFA Nos. 15-19 as an outright admission that Plaintiff lacked any evidentiary support for a Negligence claim against Lampert.

Lampert argues that based on the evidence and material facts provided, she has established that Chen admitted 100% fault for the subject incident. She also relies on Plaintiff's, Chen's, and her own statements (in discovery or via declaration), arguing it is undisputed that Lampert's vehicle was at a complete stop behind Plaintiff's vehicle prior to the subject incident, Chen's vehicle rear-ended and pushed Lampert's vehicle into Plaintiff's vehicle, and Plaintiff only felt one impact. Thus, Lampert argues that because she brought her vehicle to a complete stop behind Plaintiff and thereby controlled her vehicle's speed and movement, she did not breach any duty of care and was not negligent.

The Court will not construe Chen's admission of fault as definitive proof that Lampert did not also share fault for the incident based on Chen's own subjective opinion concerning Lampert's lack of negligence. (See Pl.'s Fact 16.) Nevertheless, based on the other facts and evidence provided, the Court finds that Lampert has established her initial burden in summary judgment. The burden shifts to Plaintiff to raise a

triable issue of material fact.

D.

Plaintiff's

Shifted Burden

Plaintiff

argues that Lampert failed to establish whether she exercised reasonable care under the circumstances or negated other theories of negligence. Plaintiff argues that Lampert has not established what occurred after traffic came to a stop, Lampert's speed immediately before stopping, Lampert's following distance behind Plaintiff, the amount of time Lampert remained stopped before impact, whether Lampert's stop was gradual or abrupt, Lampert's reaction time and observations preceding the collision, whether Lampert's conduct contributed to the emergency situation, and whether Lampert exercised reasonable care under the totality of the circumstances. (Opp. at pp.5-6.)

Plaintiff

cites her deposition testimony, wherein she testified that she was at a complete stop when Lampert's "white car kind of stopped quickly" immediately before Chen's vehicle struck Lampert's vehicle.

(See Pl.'s Depo. at pp.23-24.) Plaintiff

argues that viewing the evidence in the light most favorable to the opposing party, all reasonable inferences must be drawn in her favor—including whether Lampert stopped abruptly in heavy stop-and-go traffic immediately before the collision sequence occurred. Without weighing the credibility of each party's deposition testimony, the Court, for the purposes of a summary judgment motion, views the evidence in the light most favorable to the opposing parties. (AARTS Productions, Inc. v. Crocker National Bank (1986)

179 Cal.App.3d 1061, 1065 ["A court generally cannot resolve questions about a declarant's credibility in a summary judgment proceeding [citations], unless admissions against interest have been made which justify disregard of any dissimulation."]; Jacqueline R. v. Household of Faith Family Church, Inc. (2002) 97 Cal.App.4th 198, 203 ["The court must view the evidence, and all 'inferences' reasonably drawn therefrom, ... in the light most favorable to the opposing party."] [Internal quotations omitted].)

"Courts

have consistently recognized that issues of speed, spacing, reaction time, and the conduct of multiple drivers are inherently factual and ill-suited for resolution on summary judgment. See, e.g., Veh. Code, § 21703 (following

too closely); Johnson v. Prasad (2014) 224 Cal.App.4th 74, 79 (on a cause of action for negligence, the elements of breach of duty and causation are ordinarily questions of fact for the jury's determination.)."

The Court

finds the reasonableness of Lampert's conduct (whether it was an abrupt or gradual stop) prior to the incident presents a triable issue of material fact. Plaintiff testified that after she completely stopped, she saw Lampert's white car stop quickly. At this point, the Court cannot ascertain the manner in which Lampert braked her vehicle (abrupt or gradually), how long she was braked, her speed prior to the subject incident, whether she was following Plaintiff's vehicle too closely, etc.

Finally,

Plaintiff argues that comparative negligence is a jury question. "It is now well established that when one motor vehicle runs into the rear of another vehicle, negligence is a question of fact and not of law. [Citations.] It is also the province of the jury to determine the proximate cause of an accident. [Citation.] [¶] Cases involving rear-end collisions are legion. Although the contention is made often that the leader alone, or the follower alone, is guilty of negligence, in general it has been held that the case as presented by each party creates a question of fact for the jury and not a question of law for the court. [Citation.]" (Lowenthal v. Mortimer (1954) 125 Cal.App.2d 636, 638.) As noted above, while Chen admitted 100% fault for the subject incident, this may be relevant in allocating primary responsibility to Chen, but does not necessarily absolve Lampert from liability for conduct that may have contributed to the subject incident. Again, this is a question for the jury to decide.

As

Plaintiff has raised a triable issue of material fact, the motion for summary judgment is denied.

RULING:

In the

event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or

signed in hard copy and entered into the court's records.

ORDER

Defendant

Merceditas Lampert's Motion for Summary Judgment came on regularly for hearing on July 17, 2026, with appearances as noted in the minute order for said hearing, and the court, being fully advised in the premises, took the matter under submission after argument and now rule as follows:

the

Motion for Summary Judgment is DENIED.

PLAINTIFF

TO GIVE NOTICE.

IT IS SO

ORDERED.